



OFFICE OF THE POLICE COMMISSIONER

ONE POLICE PLAZA • ROOM 1400

February 5, 2013

CHAN

Memorandum for: Deputy Commissioner, Trials

Re: **Police Officer Raymond Padilla**
Tax Registry No. 918110
Patrol Borough Manhattan North Task Force
Disciplinary Case Nos. 2011-5551 & 2012-7287

The above named member of the service appeared before Assistant Deputy Commissioner David S. Weisel on October 22, 2012 and was charged with the following:

DISCIPLINARY CASE NO. 2011-5551

1. Said Police Officer Raymond Padilla, assigned to Patrol Borough Manhattan North Task Force, on or about August 11, 2011, while on duty, was unprepared at the Manhattan North Traffic Violations Bureau, to wit: while present to provide testimony regarding summonses said Police Officer issued, said Police Officer failed to bring a copy of the summonses and his Department issued memo book, resulting in "Not Guilty" dispositions on six (6) summonses for six (6) motorists. (*As amended*)

P.G. 211-01, Page 2, Paragraph 11

DUTIES AND CONDUCT IN COURT

DISCIPLINARY CASE NO. 2012-7287

1. Said Police Officer Raymond Padilla, assigned to Patrol Borough Manhattan North Task Force, on or about February 9, 2012, while on duty, was unprepared at the Manhattan North Traffic Violations Bureau, to wit: while present to provide testimony on summonses which said Police Officer issued, said Police Officer did not have copies of the summonses or his applicable Department issued memo book with him in court, resulting in the dismissal of thirteen (13) summonses for twelve (12) motorists. (*As amended*)

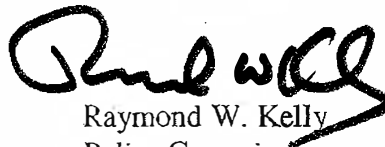
P.G. 211-01, Page 2, Paragraph 11

DUTIES AND CONDUCT IN COURT

DISCIPLINARY CASE NOS. 2011-5551 & 2012-7287
POLICE OFFICER RAYMOND PADILLA

In a Memorandum dated January 2, 2013, Assistant Deputy Commissioner David S. Weisel found Police Officer Padilla Guilty of Specification No. 1, in Disciplinary Case No. 2011-5551 and Guilty of Specification No. 1, in Disciplinary Case No. 2012-7287. Having read the Memorandum and analyzed the facts of this matter, I approve the findings, but disapprove the penalty.

Police Officer Padilla is a veteran officer who committed misconduct on two separate occasions while at the Manhattan North Traffic Violations Bureau. His misconduct caused numerous summonses to either be dismissed or result in not guilty dispositions. Therefore, a greater penalty is warranted. Police Officer Padilla is to forfeit twenty-five (25) vacation days as a disciplinary penalty.



Raymond W. Kelly
Police Commissioner



POLICE DEPARTMENT

January 2, 2013

MEMORANDUM FOR: Police Commissioner

Re: Police Officer Raymond Padilla
Tax Registry No. 918110
Patrol Borough Manhattan North Task Force
Disciplinary Case Nos. 2011-5551 & 2012-7287

The above-named member of the Department appeared before the Court on October 22, 2012, charged with the following:

Disciplinary Case No. 2011-5551

1. Said Police Officer Raymond Padilla, assigned to Patrol Borough Manhattan North Task Force, on or about August 11, 2011, while on duty, was unprepared at the Manhattan North Traffic Violations Bureau, to wit: while present to provide testimony regarding summonses said Police Officer issued, said Police Officer failed to bring a copy of the summonses and his Department issued memo book, resulting in 'Not Guilty' dispositions on six (6) summonses for six (6) motorists. *(As amended)*

P.G. 211-01, Page 2, Paragraph 11 – DUTIES AND CONDUCT IN COURT

Disciplinary Case No. 2012-7287

2. Said Police Officer Raymond Padilla, assigned to Patrol Borough Manhattan North Task Force, on or about February 9, 2012, while on-duty, was unprepared at the Manhattan North Traffic Violations Bureau, to wit: while present to provide testimony on summonses which said Police Officer issued, said Police Officer did not have copies of the summonses or his applicable Department issued memo book with him in court, resulting in the dismissal of thirteen (13) summonses for twelve (12) motorists. *(As amended)*

P.G. 211-01, Page 2, Paragraph 11 – DUTIES AND CONDUCT IN COURT

The Department was represented by Sandra Suweidan and Michelle Alleyne, Esqs.
Respondent was represented by John Tynan, Esq., Worth, Longworth & London LLP.

Respondent, through his counsel, pleaded Guilty to the subject charges and testified in mitigation of the penalty. A stenographic transcript of the mitigation record has been prepared and is available for the Police Commissioner's review.

DECISION

Respondent, having pleaded Guilty, is found Guilty.

SUMMARY OF EVIDENCE IN MITIGATION

Respondent was assigned to the Manhattan North Task Force (MNTF) as the vehicle coordinator. Under this assignment, he dealt with the maintenance of vehicles, and running errands or delivering packages to the borough or One Police Plaza. He previously was assigned to MNTF as the "summons or safety auto position."

Respondent testified that while assigned to the safety auto, he usually attended the Traffic Violations Bureau (TVB) every Thursday and dealt with 20 to 30 summonses per session. He estimated that he visited the courthouse over 500 times and wrote over 7,200 summonses in that position. In his total time with MNTF, he had issued approximately over 10,000 summonses.

There were times in appearances before TVB that Respondent asked the judge for adjournments so that he could obtain tickets not in his possession at court. Respondent stated that his requests were denied 90 percent of the time. Some judges would allow it if the motorist had been given an adjournment. Respondent asserted that if the motorist gave an "excuse," like

needing an attorney, witness, documentation or interpreter, the adjournment was granted “96 percent” of the time. 95 percent of such requests were made on the day of the court appearance.

Respondent admitted that he generally was notified of TVB appearances a week prior to the hearing date. The notices only contained the date and the time to appear, and not the cases, motorist names or summons numbers to be addressed at the hearing. Respondent stated that usually, the command received a printout for the date, and the officers had an opportunity to look at the cases scheduled.

Respondent explained that around August 11, 2011, his assignment was changed to vehicle coordinator. This caused him to go “back and forth” dealing with maintenance of the vehicles. He usually attempted to retrieve the summonses the day of the court hearing, a couple of hours before his session. In this instance, he did not have an opportunity to look at the summonses in the period from when he was notified of the court date to the date itself. He had a “box or storage bin” with over 7,000 summonses, so particular tickets were hard to find. This especially was so if the case had been adjourned and the summons’s “original package” was no longer available. On the date in question, he looked for the summonses inside the box, and was able to retrieve a majority of them, but was unable to find six. He did not find those summonses in his locker either.

On August 11, 2011, Respondent arrived to testify at TVB. He informed the judge that he was not able to give testimony and asked to reschedule. He was unable to find six of the relevant summonses. The judge stated that he appreciated Respondent’s candor, but would not allow him to reschedule. The motorists would be found not guilty due to his unpreparedness.

Respondent stated that while the TVB judge generally showed the officer the original summons during testimony, this would not include any notations he would have made on his copy. The information on the face of the summons was not enough to get a conviction.

On February 9, 2012, Respondent appeared before TVB again. He was scheduled to testify for 26 summonses that day. He received the notification for his testimony on January 24, 2012 (his recollection was refreshed by examining the notification transmittal). He usually was sent to the 1:00 p.m. session.

Respondent explained that on the date in question, his patrol supervisor informed him that Service Shop 7 had called for a vehicle to be taken in for an update regarding its vehicle identification number (VIN). The Department used a system which allowed the gas pumps to read the VIN number electronically in order to dispense gas. The system also alerted as to when a vehicle needed oil or filter changes. As vehicle coordinator, it was Respondent's duty to take the vehicle in. Shop 7 was located within the confines of the 44 Precinct, in the Bronx.

Respondent notified his supervisor that he had traffic court at 1:00 p.m., but the sergeant assured him that it was a 10-15 minute procedure. Respondent called the shop to double check and they agreed with the sergeant. Respondent took the vehicle to Shop 7, but the procedure ended up taking two and a half hours. He was left with only 15 minutes to return to his command, put on his uniform (vehicle coordinators do not wear uniforms because of their work with vehicles), attempt to retrieve documentation related to the summonses and sign in to TVB. It was not enough time. Respondent asked the judge for an adjournment due to the circumstances, but the request was denied.

On cross examination, Respondent estimated that he wrote an average of 2,400 summonses a year as a summons auto officer. He acknowledged that this experience meant he

was familiar with the process of traffic court, with his obligation to pull his applicable summonses and have his Activity Logs for his appearance.

Respondent admitted that on August 11, 2011, he told the traffic court judge he would be unable to testify in the future to the missing summonses. These motorists likely had been rescheduled five or six times. He normally put those summonses back in his storage bin, but another assignment might have prevented him from doing that. Thus, if he could not find the summonses on August 11, 2011, it was unlikely that he would find them in the future.

Respondent did not recall if he had the applicable Activity Logs for his appearance. He did not recall looking there for any summonses that day. He agreed that Activity Logs served as an aid during testimony. They contained an indication that a summons was issued, the date and the location. He also was required to list the motorist's name, Department of Motor Vehicles (DMV) client ID number, and the vehicle. Respondent agreed that he was able to produce the Activity Logs at a later date for the Department's investigation into his conduct. He contended, however, that he would not have gotten convictions based on the Activity Logs because none of his personal notes were in the book. He wrote his notes on the back of the summons.

Respondent stated that he might have taken a couple of days off between January 24, 2012, when he was notified of the February 9, 2012, TVB appearance, and the appearance date itself. Even though he had 16 days' notice, Respondent claimed, he could not have pulled the summonses earlier because his vehicle coordinator assignment required that he "wear numerous hats." He was the "errand person." He might be assigned as telephone switchboard (TS) operator, cleaner, or a supervisor's operator. As a result, Respondent was often "running around like a maniac doing different things."

Respondent acknowledged that he had visited Shop 7 before February 9, 2012, but he was not completely familiar with the shop's process because "things change." While he waited at the shop, he admitted, he did not call the patrol supervisor to ask for relief from his duties. Respondent explained that the shop had called the day before and no one else was available to take the van, so the supervisor waited until the next day for Respondent.

Respondent then stated that he did call the TS to leave a message for the supervisor, but he already was out on patrol so it was unlikely that he would have received the message. Respondent told the TS that he needed relief to go to court, but did not speak to anyone else. Respondent indicated at trial that there were no supervisors left in the command at that time. By the time Respondent returned to the command from the shop, the patrol supervisor was still on patrol. Respondent looked for him but could not locate him. He asserted that he had just "enough time to put on his uniform and run back out to traffic court."

Respondent testified that the police appearance listing (PAL) was DMV's notice to the Department that a motorist had disputed a violation or summons. In such a case, DMV scheduled a date for the motorist to appear in court. The information on the PAL stated that Respondent was scheduled to appear for certain cases. It gave the motorist's name, date of birth, summons number, and violation. The PAL also included the names of motorists whose cases had been rescheduled. The PALs were available to the officers a week before the court date and posted at the command.

Respondent confirmed that he had not pulled any summonses or Activity Logs as of the morning of court.

At the appearance, Respondent tried to testify using the PALs. After the cases were dismissed, Respondent attempted to locate the missing summonses. He could not recall if he

found them. He "might have found a couple," but not all of them. Some of them were ultimately reported lost.

On re-direct examination, Respondent estimated that at first, he did not have a high percentage of summonses that resulted in guilty findings. After a couple of months, however, he had a 75 percent increase. Now, he estimated, 80 to 90 percent of the summonses he issued had resulted in a guilty finding.

Upon questioning by the Court, Respondent stated that on August 11, 2011, he had 22 cases scheduled, six of which were dismissed because he could not testify. He testified on some of them, but could not say how many convictions, dismissals or requested reschedules resulted that day.

Respondent admitted that on February 9, 2012, when he called the TS, he did not ask the TS to contact the patrol supervisor directly. Instead, he asked if he was available. He then asked the TS to attempt to notify the supervisor that he was still stuck at the shop. Respondent believed that the patrol supervisor was "the only sergeant" working that tour.

PENALTY

In order to determine an appropriate penalty, Respondent's service record was examined. See Matter of Pell v. Board of Education, 34 N.Y.2d 222 (1974). Respondent was appointed to the Department on July 18, 1996. Information from his personnel file that was considered in making this penalty recommendation is contained in an attached confidential memorandum.

Respondent has pleaded Guilty to twice being unprepared to testify at the Traffic Violations Bureau. He stated that he simply did not have enough notice to collect all of the paperwork he needed. On the second of these two occasions, Respondent testified, he was set to

get the information but was delayed because, as his command's vehicle coordinator, he had to go to a Department shop for critical repairs.

The Department recommended a penalty of 15 vacation days. Respondent suggested that an instruction would suffice. In this tribunal's view, however, no instruction should be necessary to remind a veteran officer that he must prepare for court well ahead of time. An officer should know that Department life is unpredictable. Respondent was informed at least a week in advance of the names of those motorists whose cases he needed to compile. Moreover, Respondent should have realized after the first time he was unprepared that he needed to be prepared in the future.

Nonetheless, there is no indication that Respondent purposefully failed to prepare or did so out of any kind of corrupt motive. 15 days is appropriate here because there was not just one, but two failures to prepare adequately for traffic court. Cf. Case No. 2011-5159 (10 days for officer who failed to bring copies of 4 summonses and failed to make adequate Activity Log entries about those summonses). The Court also has taken note of Respondent's prior history, see Conf. Mem., infra.

Accordingly, Respondent should forfeit 15 vacation days as a penalty.

Respectfully submitted,



David S. Weisel
Assistant Deputy Commissioner – Trials



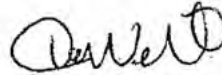
POLICE DEPARTMENT
CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
POLICE OFFICER RAYMOND PADILLA
TAX REGISTRY NO. 918110
DISCIPLINARY CASE NOS. 2011-5551 & 2012-7287

In 2009 and 2011, Respondent received an overall rating of 4.5 “Extremely Competent/Highly Competent” on his annual performance evaluation. He was rated 4.0 “Highly Competent” in 2010. [REDACTED]
[REDACTED]
[REDACTED]

Respondent has been the subject of one prior adjudication. In 2001, he forfeited 30 pre-trial suspension days after pleading Guilty to harassment in the second degree.

For your consideration.



David S. Weisel
Assistant Deputy Commissioner Trials